2019 M L D 753

[Sindh]

Before Mrs. Kausar Sultana Hussain, J

Mst. SHAHNAZ BIBI and another---Applicants

Versus

NAZEER AHMED and 3 others---Respondents

Criminal Miscellaneous Application No.179 of 2018, decided on 18th July, 2018.

Criminal Procedure Code (V of 1898)---

----S.491---Habeas Corpus petition---Custody of the minors to mother who had solemnized second marriage---Welfare of minors---Scope---Attitude of the mother and step-father---Effect---Sessions Court handed over custody of two male and one female minor from mother to the father of the minors on his application under S. 491, Cr.P.C.---Applicants (mother and her second husband) contended that Sessions Court looked merely at the apparent poor condition of the minors and thus, had wrongly handed over their custody from them to the respondent/father---Respondent/father of the minors contended that minors were intelligent enough to elaborate their dismal condition with their step-father, carpenter by profession who used to take male minors at work and was accustomed to beat them---Upon extensive queries with minors individually by the High Court, all the three minors had flatly refused to join their mother/applicant---One male minor stated that even, at one occasion, applicant/step-father had badly wounded his hand and nose with knife---High Court found the marks of injuries very much visible on both parts of the minor's body---Other two minors also confirmed statement of said minor and explicitly stated that applicant/step-father was in habit to beat them, so they did not want to live with their mother and step father and they were quite happy with their real father---Maternal grandfather of minors also appeared before the High Court and disclosed that his daughter/ applicant had married another man after committing fraud with her ex-husband, who was a gentleman---Applicant (mother), after obtaining divorce from her previous husband, entered into second marriage and then she claimed her minor daughter from her previous husband---Handing over the custody, in circumstances, would amount to place the minor in the custody of new husband of the mother---If mother had contracted a second marriage with a stranger, she would lose her right of hizanat---Father had not, entered into second marriage yet and was looking after the minor children and was living along with his brother while his father (paternal grand father of minors) was also residing nearby---High Court observed that the custody of the minors should continue with their father as per wishes of the minors, being in the interest, well being and welfare of all of them---Attitude of the applicant/step-father with minors, in the present case, could not be ignored---Custody could not be handed over to a person who was brutal, cruel, inhumane and bitter, who did not hesitate to attack innocent children with knife---Mother had also failed to protect and secure her children from said brutality---Applicant/mother could approach the Guardian Court, if she wanted to

obtain the custody of the minors---Application of mother and step-father was dismissed, in circumstances.

1981 SCMR 200 ref.

Syed Muddasir Hussain Zaidi for Applicants.

Nisar Ahmed Shar for Respondent No.1.

ORDER

MRS. KAUSAR SULTANA HUSSAIN, J.---On 30.06.2018, Applicants Mst. Shahnaz Bibi and Muhammad Riaz (husband of the Petitioner No.1) have submitted Criminal Misc. Application under Section 561-A, Cr.P.C. against the order dated 01.06.2018 passed by the learned District and Sessions Judge, Malir Karachi in Habeas Corpus Application No.97/2018 filed by the Respondent No.1 (Nazir Ahmed), ex-husband of applicant No.1 and the real father of the alleged detenues Master Tanveer aged about 11 years, Master Shahmeer aged about 10 years and Baby Shahzadi, aged about 08 years. Order sheet dated 14.06.2018 shows that when the Applicants have submitted present application before this Court, my learned brother Judge Mr. Justice Zulfiqar Ahmed Khan on first date of hearing, heard the learned counsel for the Applicant and also applicants present in persons and had passed order before issuing notices to the Respondent No.1 whereby, he suspended the operation of impugned order dated 01.06.2018: and also directed that the custody of the alleged three minors detenues be handed over to the mother (Applicant No.1) owing to the reason that the learned District and Sessions Judge, Malir Karachi merely looked at the condition of the children which according to him appeared to be very poor and alleged detenues looked very intelligent and on these two reasons the learned District and Sessions Judge, Malir Karachi, decided the case in favor of the Respondent No 1 (the real father of alleged detenues). Since, alleged detenues were in custody of Respondent No.1, who was residing along with alleged detenues in Punjab province; therefore, police of P.S. SITE, Super Highway, Karachi was directed to produce custody of minors, to which the SRO reported to this Court that he wrote a letter to Home Department through proper channel for dispatch of a police party to District Khanpur, Punjab Province, where the Respondent No.1 along with alleged detenues was residing. Today, the police has produced Respondent No.1 and alleged detenues before this Court for handing over the custody of three to the Applicants of whom the Applicant No.1 is the real mother of alleged detneues while the Applicant No.2 is the step father of minors. This Court called the Applicants, Respondent No.1 and all three alleged detenues in Chamber and heard their counsel. Mr. Nisar Ahmed Shar, Advocate has submitted his power on behalf of Respondent No.1. This Court made extensive queries to alleged detenues in order to ascertain their, views as all three minors are grown up having understanding of prevailing circumstances. When this Court asked the minors that whether they on their own will and wish want to reside with their mother/applicant No.1 or with their real father (Respondent No. 1). All three minors have flatly refused to join their mother. Upon extensive queries with minors individually, the alleged detenue Master Tanveer informed that the Applicant No.2/Muhammad Riaz, step father of the minors used to take him and his brother Master Shahmeer to his shop of carpenting and compelling them to do work at his shop, occasionally they will also get Rs. 50/- for their labour work in the shop. Besides this, Master Tanveer has further said that Applicant No.2 accustomed to beat him and his two siblings badly and at one such occasion the Applicant No.2 badly wounded his hand and nose with knife and due to such injury people of

Mohalla took him to hospital where he was provided medical treatment and his injuries were mend with three stitches. I myself saw his hand and nose, and found that marks of injuries were very much visible on both body parts. Master Shahmeer and Baby Shahzadi also confirmed the statement of Master Tanveer and explicitly stated that Muhammad Riaz was in habit to beat them too, as such they do not want to live with mother and step father. They said that they are quite happy with their real father (Respondent No.1). Meanwhile, the father of Applicant No.1 (maternal grandfather of minors) after seeking permission also appeared before this Court and disclosed, that his daughter (Applicant No.1) solemnize second marriage with present Applicant No.2 after leaving her ex-husband. (Respondent No.1), who is also his nephew and is a gentleman who always kept the Applicant No.1 and all three children happily within his means, but his daughter (Applicant No.1), committed fraud with Respondent No.1, and solemnize marriage with Applicant No.2. The learned counsel appearing on behalf of the Applicants and Respondent No.1 advanced their arguments. The learned, counsel for the Applicants opposed the order passed by the learned District and Sessions Judge, Malir Karachi whereby, the custody of the minors was handed over to their real father taking their custody from their mother although as per his version the Applicants were looking after the minors properly. Conversely, learned counsel for the Respondent No.1 argued that after entering into second wedlock the Applicant No.1 has lost her right of Hizanat. In support of his arguments, learned counsel for the Respondent No.1 relied upon 2018 MLD 591 Balochistan (Quetta Bench) and 1981 SCMR 200.

The Hon'ble Supreme Court has decided in the case reported in 1981 SCMR 200 that matter, wherein the Petitioner after obtaining divorce from her previous husband, solemnize second marriage and after that she claims of her minor daughter from her previous husband and then approach to the Court for custody of her daughter, the Hon'ble Supreme Court had declined to handover the custody of minor daughter to the Petitioner mother on the ground that handing over the custody to the Petitioner mother will amount to place the minor in the custody of new husband of the Petitioner who does not fall within the prohibited degree to the ward. In another case law, relied upon by the learned counsel for the Respondent No.1, my learned sister Justice Ms. Syeda Tahira Safdar and my learned brother Judge Mr. Justice Zaheer-ud-Din Kakar, Judges of Quetta Bench have decided that if a lady contract a second marriage with stranger, she loses her right of Hazanat, they have relied upon the reported Judgment in case of Mst. Nazeer v. Haji Ghulam Mustafa (1981 SCMR 200). Admittedly, the Petitioner No.1. has solemnized second marriage with Applicant No.2 therefore, the custody of minor daughter cannot be allowed her as handing over custody of minor daughter to the applicant No.1 will amount to hand over the custody of minor daughter to a stranger after taking her custody from her real father/respondent No.1.

The learned counsel for respondent No.1 has also referred in his arguments that according to Muhammadan Law mother after solemnized second marriage loses her right of Hizanat of her female child.

It is obvious that as per Muhammadan Law although the mother is entitled to the custody of her minor children yet such right discontinues when she takes second husband, who is not related to the children within prohibited decree and is stranger in which case the custody of minor belongs to the father. The father/Respondent No.1 has not solemnized second marriage up till now and is looking after the minor

children by himself and presently he is residing in Punjab province along with his brother and his family. The father of applicant No. 1 also supported the version of respondent No.1 especially his contention that he is looking after the minors very well, he further stated that he is also residing near the house of respondent No.1 and he himself often takes care of the minors, that they are quite happy while living with them and are studying in Maddarsah.

In view of above discussion, I am of the firm view that the custody of minors should continue with respondent No.1 (real father) as per wish and desire of the minors, as it would also be in the interest, well being and welfare of all of them. The attitude of the applicant No.2 with minors as described above cannot be ignored and in such case custody cannot be handed over to a person, who is brutal, cruel, inhumane and bitter, who do not hesitate to attack innocent children with knife. The real mother has also failed to protect and secure her children from such brutality.

Accordingly, present Criminal Misc. Application bearing No. 179 of 2018 is hereby dismissed. If the applicant No.1 wants to obtain the custody of minors, she can approach to Guardian and Ward Court for obtaining custody of minors on merits proving herself entitle to keep the custody of minor.

MQ/S-63/Sindh Application dismissed.

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